Rokibul Islam vs State (Govt. Of N.C.T. Of Delhi) on 13 April, 2023

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1144/2023 & CRL.M.A. 9231/2023
ROKIBUL ISLAM
Through: Mr. Deepak Agarwal, Ad

versus

STATE (GOVT. OF N.C.T. OF DELHI)
Through: Mr. Manoj Pant, APP fo
with Inspector Banwar
IFSO/Special Cell, Del
CORAM:
HON'BLE MS. JUSTICE SWARANA KANTA SHARMA
ORDER

% 13.04.2023

1. The instant application under Section 438 of the Code of Criminal Procedure, 1973 („Cr.P.C) has been filed on behalf of the applicant seeking anticipatory bail in case arising out of FIR bearing no. 296/2022, registered at Police Station Special Cell, Delhi, for offences punishable under Sections 419/420/468/471/120-B of the Indian Penal Code, 1860 („IPC) and Section 66-C/66-D of Information Technology Act, 2000 („IT Act)

2. Brief facts of the present case are that this Court vide order dated 20.07.2022 in Suit No. CS(COMM) 475/22 titled as "Fashnear Technologies Pvt. Ltd. v. Meesho Online Shopping Pvt. Ltd." had directed to investigation in this case during the hearing of the Suit. It is alleged that the cheaters shared fake employee IDs approval letters and duped the public at large impersonating as authorized representative of plaintiff in the said civil suit. Accordingly, FIR was registered. During investigation, many complaints were received and it was alleged that the complainants have been cheated of their hard-earned money. During the course of investigation, co- accused Mozammel Hussain @ Mozam, who is real brother of present accused/applicant, was arrested and Rs. 9 lakhs were found transferred to the bank account of applicant between 25.03.2021 to 30.11.2022.

3. Learned counsel for present accused/applicant states that applicant has not been named in the FIR nor in the chargesheet. He is a student and merely because the co-accused is his real brother, on his disclosure statement, applicant cannot be implicated in this case. It is also stated that there is no incriminating material on record against him and being a student, he be released on bail.

4. Per contra, learned APP for the State argues that he is part of a larger syndicate of persons who cheat innocent people by committing online fraud and in the present case investigation itself was initiated in terms of directions of this Court. It is also stated that his custodial interrogation is required and he has not joined investigation.

5. I have heard arguments on behalf of both sides and have gone through the material on record.

6. After hearing arguments, this Court is of the view that the allegations against the applicant are that he is one of the beneficiaries of the alleged cheated amount and had received a sum of Rs. 9 lakhs in his account between 25.03.2021 to 30.11.2022. The applicant has not joined the investigation and his role in the entire conspiracy and source of amount received in his bank account has to be ascertained. The present applicant however has not joined the investigation. Co-accused Mozammel Hussain @ Mozam, who is real brother of applicant had also transferred the amount cheated from innocent persons to applicants account. The laptop, Pen drive letter head, appointment letters and other fake documents related to 13 different companies were found during investigation. It is alleged that on the basis of investigation carried out till date, all the accused persons in furtherance of their criminal conspiracy had cheated several persons and had withdrawn money from bank accounts and delivered to each other. They have also been charged for offences of identity theft and cheating by impersonating under the IT Act and have duped unsuspecting members of the public of their money.

7. Considering the allegations levelled against applicant, which require custodial interrogation and also finding trail of money and the source of money received in applicant/accused account and ascertaining his role in the entire conspiracy. Considering the same, no ground for anticipatory bail is made out. In view thereof, at this stage, no ground for grant of anticipatory bail is made out in favour of accused/applicant.

8. Accordingly, the present application stands dismissed.

9. Nothing expressed herein will tantamount to any expression on merit of the case during trial.

10. The order be uploaded on the website forthwith.

SWARANA KANTA SHARMA, J APRIL 13, 2023/kss Click here to check corrigendum, if any